

this motion on substantive grounds.

On the merits, there is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “ ‘inexcusable delay and probable prejudice to the opposing party’ ... [Citation.]” (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.”).)

Here, Droubi seeks to add a slander of title claim and make other small changes to the cross-complaint. The original cross-complaint was filed in April 2024 and this motion was filed in December 2025. Droubi has provided no explanation for the delay in bringing the slander of title claim, however there is also no showing of prejudice. The Court **grants** this motion.

10. 9:00 AM CASE NUMBER: C23-02436

CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF FIRST AMENDED COMPLAINT**

FILED BY: DROUBI, NAHLA

TENTATIVE RULING:

Defendant Nahla Droubi’s motion to strike punitive damages from the first amended complaint is **granted with leave to amend**. Plaintiffs have 10 days from the notice of entry of this order to file an amended complaint.

Defendant seeks to strike the punitive damages allegations. (FAC ¶49, the “punitive damages” language in prayer for relief 1.)

In the FAC, Plaintiffs sued for breach of contract, unjust enrichment, trespass and contribution under Civil Code section 845. Plaintiffs own 30 Echo Hill Lane and Defendant owns 22 Echo Hill Lane. (FAC ¶¶8-9.) Echo Hill Lane is a private roadway that connects both parties’ properties to Warfield Drive. (FAC ¶¶8-9.) Defendant’s property uses the roadway pursuant to an express easement. (FAC ¶9.) The parties also entered into a maintenance agreement for the roadway. (FAC ¶¶10, 11.)

In 2021, Plaintiffs told Defendant that the roadway needed to be replaced and asked Defendant to pay for half of the work. (FAC ¶¶12, 13.) In 2023, Plaintiffs got the opinion of a structural and civil engineer stating that the roadway needed to be repaved. (FAC ¶¶14, 15.) Later in August 2023, Plaintiffs had the roadway repaved for \$94,500. (FAC ¶16.) Defendant has not paid for her half of the roadway costs. (FAC ¶17.)

The punitive damages allegations relate to the trespass claim. In the trespass claim, Plaintiffs also own 18 Echo Hill Lane, which is next to a portion of the easement area (Echo Hill Lane). Plaintiffs allege that Defendant and her guests use a footpath next to the express easement and that this footpath goes onto Plaintiffs’ property outside of the easement area. (FAC ¶43.) Plaintiffs also allege that they put up walls to block the footpath, but after that Defendant and her guests started using the driveway for 18 Echo Hill Lane. (FAC ¶44.) Plaintiff alleges that Defendant’s behavior “was knowing,

intentional and willful, and was undertaken with oppression, fraud, and/or malice, entitling Plaintiffs to an award of punitive damages”. (FAC ¶49.)

Defendant argues that the intent necessary to prove a trespass does not always rise to the level necessary for punitive damages and that here the allegations are insufficient. Plaintiffs argue that they have sufficiently alleged facts showing punitive damages.

Punitive damages may be awarded in some trespass claims. (*Haun v. Hyman* (1963) 223 Cal.App.2d 615, 620 (punitive damages allowed when a “trespass is committed from wanton or malicious motives, or a reckless disregard of the rights of others”).) Since 1987, however, a party must not only show “reckless disregard of the rights of others”, but “despicable conduct” in order to show malice. (See, *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [The requirement of showing despicable conduct was added in 1987, and was intended to serve as a substantial, independent limitation on the right to recover punitive damages].)

That being said, not all trespass claims include the intent necessary to award punitive damages. “The only intent required to commit a trespass is an intent to enter the land regardless of motivation; a trespass may be committed by an act that can be intentional, reckless or negligent.” (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 10, fn. 7.)

Thus, the question here is whether the facts alleged show fraud, oppression or malice. (Civil Code section 3294.) There is no showing of fraud. Malice requires “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civil Code section 3294(c)(1).) Oppression requires “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” Despicable conduct has been described as conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. [Internal quotation marks omitted.]” (*Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159.)

Here, it is alleged that Defendant, Plaintiffs’ immediate neighbor, used a portion of Plaintiffs’ property to access her own property. It is also alleged that Defendant continued to use Plaintiffs’ property after Plaintiffs installed a wall to block access to the path. The allegations here are sufficient to state a claim for trespass, but they do not show despicable conduct. Therefore, the motion to strike punitive damages. As this is the first time these issues have been considered by the Court, Plaintiffs are given leave to amend.

11. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF OAKLEY
FILED BY:
TENTATIVE RULING:

The Defendant City of Oakley was dismissed on August 5, 2026. If this motion is withdrawn or moot, counsel shall provide notice to the Court.